In the *Golak Nath* case[65] (1967), the Supreme Court overruled its earlier verdicts delivered in the *Shankari Prasad* case[66] (1951) as well as in the *Sajjan Singh* case[67] (1964). In both the cases, the Supreme Court held that the Parliament's amending power under Article 368 also includes the power to amend the fundamental rights guaranteed in Part III of the constitution. Hence, a constitutional amendment act enacted to abridge or take away the fundamental rights is not void under Article 13(2). Later, in the *Golak Nath* case[68] (1967), the Supreme Court held that the amending power under Article 368 can not be used to abridge or take away the fundamental rights and a constitutional amendment act is "law" within the meaning of Article 13(2). But, the Supreme Court applied the doctrine of prospective overruling and declared that this decision will have only prospective operation and not retrospective operation. This means that the Parliament will have no power from the date of this decision to amend any of the provisions of Part III of the Constitution so as to abridge or take away the fundamental rights enshrined therein. Further, the First Amendment Act, 1951, the Fourth Amendment Act, 1955 and the Seventeenth Amendment Act, 1964 will continue to be valid for the future.

2. Formulation of the Doctrine

The Supreme Court negatived the contention in *Golak Nath* case[69] (1967) that prospective overruling amounts to judicial legislation. Explaining the Blackstonian theory of law, i.e., Judge discovers law and does not make law, and the efficacy of prospective overruling, the court made the following observation[70]:

"The doctrine of 'prospective overruling' is a modem doctrine and is suitable for a fast moving society. It does not do away with the doctrine of stare decisis, but confines it to past transactions. It is true that in one sense the court only declares the law, either customary or statutory or personal law. While in strict theory, it may be said that the doctrine involves the making of law, what the court really does is to declare the law but refuses to give retroactivity to it. It is really a pragmatic solution reconciling the two conflicting doctrines, namely, that a court finds the law and that it does make the law. It finds the law but restricts its operation to the future. It enables the court to bring about a smooth transition by correcting its errors without disturbing the impact of those errors on the past transactions. It is left to the discretion of the court to prescribe the limits of the retroactivity and thereby the doctrine enables the court to mould the relief to meet the ends of justice. By the application of this doctrine, the past may be preserved and the future protected".

3. Basis of the Doctrine

The Supreme Court explained the legal and constitutional basis of the doctrine of prospective overruling in the following way[71]:

"In India, there is no statutory prohibition against the court refusing to give retroactivity to the law declared by it. Indeed, the doctrine of res-judicata precludes any scope for retroactivity in respect of a subject-matter that has been finally decided between the parties. Further, the Indian court by interpretation reject retroactivity to statutory provisions though couched in general terms on the ground that they affect vested rights, the present case only attempts a further extension of the said rule against retroactivity.

Our Constitution does not expressly or by necessary implication speak against the doctrine of prospective overruling. Indeed, Articles 32, 141 and 142 are couched in such wide and elastic terms as to enable this court to formulate legal doctrines to meet the ends of justice. The only limitation thereon is reason, restraint and injustice. Under Article 32, for the enforcement of the fundamental rights, the